

TENTATIVE RULING

Case: **Labor Commissioner v. Trifecta, Inc.**
 Case No. CV2019-476

Hearing Date: **April 16, 2026** **Department Fourteen** **9:00 a.m.**

Judgment creditor Labor Commissioner’s motion to amend judgment to add judgment debtor’s successor is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 187; see *Misik v. D’Arco* (2011) 197 Cal.App.4th 1065, 1073.) Labor Commissioner failed to file with the Court a proof of service of the moving papers on this motion on the judgment debtor or its alleged successor. (Cal. Rules of Court, rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.”].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Martinez v. Martinez**
 Case No. CV2025-3459

Hearing Date: **April 16, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff and cross-defendant Servando Martinez’s (“cross-defendant”) motion to set aside default is **DROPPED FROM CALENDAR**. At the March 30, 2026, hearing, the Court ordered cross-defendant to file the motion to set aside by April 2. Cross-defendant did not file the motion by April 2.